

26STCV11332 26STCV11332

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV11332 Hearing Date: September 17, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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DARRELL GARDNER,

Plaintiff(s),

vs.

GREGORY

A. FACKTOR,

Defendant(s).

Case No.:

26STCV11332

Hearing Date:

September 17, 2026

[TENTATIVE]

ORDER RE: APPLICATION FOR WRIT OF ATTACHMENT

Plaintiff Darrell Gardner ("Plaintiff")

seeks a writ of attachment against defendant Gregory A. Facktor ("Defendant").

The application is denied.

I.

Background

1. Factual Background

Defendant founded Greg Facktor

& Associates, LLC ("Company") and was its sole owner. (Gardner Decl., ¶ 4.)

Plaintiff and Jay Boyer ("Boyer") were senior employees of the Company.

(Gardner Decl., ¶ 4.)

Plaintiff and Defendant entered

the Membership Interest Purchase Agreement ("Agreement"), dated April 1, 2021,

by which Plaintiff purchased 50 percent of the Company, a healthcare consulting

provider. (Gardner Decl., ¶¶ 2-3, Ex. A.) The Agreement references three other

related contracts, and together the four contracts (collectively, "GFA

Agreements") constituted a complete reorganization of the Company's ownership.

(Gardner Decl., ¶ 4.) The GFA Agreements provide Defendant continued employment

and seven years of guaranteed compensation. (Gardner Decl., ¶ 14.)

Defendant transferred about a

third of the total shares, 333.2 shares, in annual transfers from 2021 through

2024. (Gardner Decl., ¶¶ 20-21.)

On August 5, 2024, Defendant and

Boyer terminated Plaintiff. (Gardner Decl., ¶ 22.) On September 25, 2023,

Defendant sent Plaintiff a Notice of Purchase Option by Greg Facktor &

Associates ("Option Notice"), which stated that the purchase price for Company

shares was calculated by Company CPAs, under an agreed formula in the GFA

Agreements, to be \$4,922.55 per share. (Gardner Decl., ¶ 7-8, Ex. B.) The

Purchase Option stated the Company would pay a down payment of ten percent of

the purchase price for the shares and execute a promissory note for the

remaining balance, personally guaranteed by Defendant and Boyer. (Gardner

Decl., ¶ 28.) The Company assured Plaintiff he would be paid the full value of

his shares. (Gardner Decl., ¶ 29.)

On October 25, 2024, the Company sent a letter titled "Purchase of Member Shares" (Gardner Decl., Ex. G), then shortly after wired \$164,019.42, ten percent of the total purchase price of Plaintiff's 333.2 shares. (Gardner Decl., ¶ 30.)

2. Procedural History

On April 8, 2026, Plaintiff filed his complaint for, inter alia, breach of contract. A Proof of service filed April 24, 2026 shows Plaintiff served the summons and complaint on Defendant by personal service on April 22, 2026. On May 29, 2026, Defendant filed his answer to the complaint.

On June 5, 2026, Plaintiff filed the instant application for writ of attachment against Defendant, noticed for August 1, 2026. On August 5, 2026, the Court continued the hearing on the application to September 17, 2026, in accordance with the parties' joint stipulation. On September 10, 2026, Defendant filed his opposition.

II.

Applicable Law

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought." (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP §

484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Analysis

1. Claim on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement” (CCP § 483.010(b).)

Here, Plaintiff's claims against Defendants are premised on his claim for breach of the Agreement. (See Mem. at 11.) Plaintiff may seek attachment based on this claim.

2. Contract Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant's conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (“Kadison”) (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

The Agreement was part of the GFA Agreements, which collectively sold and reorganized the Defendant's Company and provided for Defendant's continued employment and guaranteed income. (Gardner Decl., ¶¶ 4, 12-14.) Accordingly, the claims are commercial in nature.

3. Fixed or Readily Ascertainable Amount

A claim is “readily ascertainable” where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41 [“Super DVD”].) The fact that the damages

are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff's evidence shows that Plaintiff and Defendant executed the Agreement for the purchase of a 50 percent interest in the Company. (Gardner Decl., ¶¶ 2-3, Ex. A.) Defendant transferred about a third of the total shares, 333.2 shares, to Plaintiff. (Gardner Decl., ¶¶ 20-21.) On August 5, 2024, Defendant and Boyer terminated Plaintiff. (Gardner Decl., ¶ 22.) The Company indicated it would buy back the shares already transferred to Plaintiff, but not the remaining shares he would have obtained under the Agreement. (See Gardner Decl., ¶¶ 28-30.)

In particular, Plaintiff states that the value of the remaining shares "will be at least the amount on an average share basis that [the Company] sought to purchase from [Plaintiff] in 2024, i.e., \$4,922.55." (Gardner Decl., ¶¶ 10.)

As stated, the contract must furnish a standard by which the amount may be ascertained, and the basis of the calculation must appear to be reasonable and definite. (Super DVD, supra, 115 Cal.App.4th at 540-41.) Here, the Agreement provides that Plaintiff is entitled to shares equaling 50 percent ownership in the Company. Plaintiff provides an estimate of the worth of the shares he contends he is owed, based on a prior evaluation. Without opining on the accuracy of the valuation or of Plaintiff's estimation, this calculation is not "reasonable and definite." As Plaintiff acknowledges, the amount sought is not a calculation of the value of the shares, but a minimum estimate based on greater earnings in 2024 and 2025.[1] (Gardner Decl., ¶¶ 10-11.) Even if the Court credits Plaintiff's minimum calculation, Plaintiff submits no authority showing that the Court may accept a minimum calculation in place of the definite calculation ordinarily required.

Accordingly, the amount is not readily ascertainable.

4. Probable Validity of Plaintiff's Claims

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment

against the defendant on that claim.” (CCP § 481.190.) “If the defendant opposes the application, ‘the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.’ [Citations.]” (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Here, the application is based on claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

Here, as noted above, Plaintiff’s evidence shows that Plaintiff and Defendant executed the Agreement for the purchase of a 50 percent interest in the Company. (Gardner Decl., ¶¶ 2-3, Ex. A.) Defendant transferred about a third of the total shares, 333.2 shares, to Plaintiff. (Gardner Decl., ¶¶ 20-21.) On August 5, 2024, Defendant and Boyer terminated Plaintiff. (Gardner Decl., ¶ 22.) The Company indicated it would buy back the shares already transferred to Plaintiff, but not the remaining shares he would have obtained under the Agreement. (See Gardner Decl., ¶¶ 28-30.)

Plaintiff has made a prima facie showing for breach of contract.

In opposition, Defendant argues Plaintiff breached first by breaching his fiduciary duty to the Company. Specifically, Defendant alleges Plaintiff falsified time entries, breaching the Company Operating Agreement and therefore forfeiting any right to the remaining shares.

On application for prejudgment attachment, the Court must determine the relative merits of the positions and evaluate the probable outcome of the litigation. (Pech v. Morgan, supra, 61 Cal.App.5th at 855.) The Court does not here make any final adjudications of the merits. The Court must make its determination on the limited evidentiary showing before it for the application.

In direct contradiction to Plaintiff’s implications that Defendant and Boyer invented timekeeping

inflation to justify a breach (Gardner Decl., ¶ 31; Mem. at 13), Defendants show Boyer expressed his belief that Plaintiff's conduct satisfied good cause for termination in April 2024, and then initiated and completed an investigation into Plaintiff's conduct in July 2024, before ultimately terminating Plaintiff in August 2024. (Boyer Decl., Exs. 8-9.)

Plaintiff also supports his position with the fact that the Company terminated him without cause. (Gardner Decl., ¶ 22, Ex. F.) However, the termination procedures used are not dispositive of whether Plaintiff violated the Operating Agreement, which is the basis of Defendant's claim that Plaintiff is not entitled to the remaining shares. Defendant also presents a plausible reasoning for terminating Plaintiff without cause: the Company, Defendant, and Boyer sought to reach compromise to avoid litigation. (Boyer Decl., Ex. 9.)

On the evidence provided, the Court is not able to find that Plaintiff is more likely than not to prevail on the merits. Accordingly, Plaintiff has not shown the probable validity of its breach of contract claim.

IV.

Conclusion

Because the amount is not readily ascertainable, and because Plaintiff has not shown that his claim has probable validity on this record, the Court need not analyze the remaining statutory elements or address the undertaking. Plaintiff's application for writ of attachment is DENIED.

Date: September 17, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

It is also unclear to the Court whether the valuation period for the shares should be based on the timing of the triggering event or the sale.